

HOUSE BILL 2434

By McKenzie

AN ACT to amend Tennessee Code Annotated, Title 49,
Chapter 6, relative to library collections.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-3803(d), is amended by designating the existing language as subdivision (d)(1) and adding the following as a new subdivision:

(2) A policy adopted pursuant to subdivision (d)(1) must not allow for the removal of a material in a library collection that is being evaluated by the local board of education or public charter school governing body pursuant to subsection (e) or by the state textbook and instructional materials quality commission pursuant to § 49-6-2201(m)(1)(D) until a determination is made by the local board, governing body, or commission, as applicable, to remove the material from the library collection.

SECTION 2. Tennessee Code Annotated, Section 49-6-3803(e), is amended by deleting "subdivision (d)(2)" and substituting "subdivision (d)(1)(B)".

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.